

**SUBSTITUTE FOR
HOUSE BILL NO. 5162**

A bill to amend 1978 PA 368, entitled
"Public health code,"
by amending section 7204 (MCL 333.7204), as amended by 2012 PA 182.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 7204. If a substance is designated, rescheduled, or
2 deleted as a controlled substance under federal law and notice of
3 that designation, rescheduling, or deletion is given to the
4 administrator, the substance ~~shall~~**must** be similarly scheduled
5 under section 7201 unless the administrator holds a board meeting
6 ~~within the expiration of 91~~**not more than 60** days after notice is
7 received to determine whether the substance should be similarly
8 controlled under section 7201. If the administrator decides not to
9 similarly ~~control~~**schedule** the substance, the administrator shall,



- 1 ~~within 91~~ **not more than 60** days after that decision is made,
- 2 publish the reasons for that determination.

